https://www.scottsdale.org/city_news/scottsdale-keeps-cameras-on-despite-flock-fury/article_9670e344-0d7a-47fb-b7a8-d9f51747d359.html

Scottsdale keeps cameras on despite 'Flock fury'

By Tom Scanlon, Progress Managing Editor
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A Flock camera – one of 85 around Scottsdale – tracks drivers who pass by Fashion Square. (Tom Scanlon/Managing Editor)

What can be called “Flock fury” is raging around the country and Valley.

Over the last month, neighboring communities – Tempe, Chandler, Cave Creek and Surprise – responded to privacy concerns and/or abuses by canceling Flock, also known as “deFlocking.”

The Scottsdale Police Department, meanwhile, continues to monitor its 85 Flock cameras, which track passing vehicles round-the-clock.

Though Flock is not on City Council's Tuesday, Sept. 22, meeting, one councilman said work is going on behind the scenes to schedule a presentation – and "proposed ordinance."

All of the "recent controversy" over Flock cameras?

Nothing new here.

It has been nearly a year since a few Scottsdale residents demanded Scottsdale City Council cancel contracts with Flock – and turn off automated license-plate readers some howl violate rights to privacy.

Since then, Scottsdale Police Chief Joe LeDuc has appeared at several City Council meetings. Most recently, at the Sept. 8 meeting, he gave a presentation on a $60,000 contract "for veterinary services for working canines."

Scottsdale annually pays Flock more than six times that much, with the annual cost for the Flock system exceeding $370,000.

Scottsdale City Council has approved that for years, as part of City Manager Greg Caton's budget, which includes $25.7 for SPD "contractual services."

Councilman Barry Graham, who faces a runoff in his bid for reelection, often boasts of keeping a sharp eye on city spending.

Yet, Graham said, "Flock has not come before the City Council."

On Aug. 10, responding to questions on Flock from the Progress, Graham stated:

"Residents' right to privacy outweighs the benefits of constant and intrusive surveillance. I'm very concerned about how this technology has been abused elsewhere."

More than a month later, the Progress asked Graham why he has not asked for a presentation on Flock.

“We're currently working with City Manager Caton and Police Chief LeDuc to get the (Flock) auditor review, usage data, and the proposed ordinance in hand before council creates policy,” Graham said.

“A presentation before that work is completed would only be political theater, not responsible oversight and policymaking.”

Sgt. Allison Sempsis of the Scottsdale Police Department confirmed this.

“We are currently working to identify additional safeguards, accountability measures and transparency surrounding the program. Once that work is complete, we intend to bring the issue to the City Council for a public discussion in the near future,” she said, without providing details.

Councilwoman Solange Whitehead – who was reelected outright in July to avoid a runoff – was blunt about license-plate readers last month:

“My top priority is to end Scottsdale's contract with Flock,” Whitehead told the Progress.

Michelle Ugenti-Rita, the former state senator who is one of the three candidates in the City Council runoff, also was unequivocal about ALPRs.

“I oppose Flock cameras because I believe the right to privacy outweighs the benefits of putting citizens under continuous, automated surveillance,” she stated, in an email to supporters.

“Flock safety cameras use automated license plate readers to log vehicle movements, capturing time, location, and visual data,” Ugenti-Rita wrote. “This essentially subjects every citizen to warrantless surveillance without individualized suspicion.”

Her bottom line:

“We can support our police while saying no to mass surveillance.”

The Progress asked the SPD about Scottsdale politicians’ concerns over Flock.

“I cannot speak for individual Council members or what position the Council may ultimately take,” Sempsis responded.

Scottsdale and Flock

Fielding concerns about Flock is hardly new, for City Council members.

Last fall, Councilwoman Maryann McAllen said she received “over 100 emails” about Flock.

During the public comments section of Scottsdale City Council’s Nov. 17 meeting, Eric Fowler – identifying himself as chair of the Maricopa County Libertarian Party – took the microphone.

Fowler derided Flock as “AI mass surveillance network, a system that this council never voted on, never held a hearing about, and apparently never knew existed.”

Calling the Flock system “mass surveillance of innocent people without warrants,” Fowler concluded:

“I'm demanding that you terminate this contract immediately.”

He was followed by fellow Flock-haters Vincent La (“this AI stuff has come really, really fast”) and Merissa Hamilton (“there is no way to have responsible or transparent use of these devices”).

Caton responded by emotionally proclaiming the Scottsdale Police Department is on “the cutting edge” of AI and technology.

“I agree with the city manager,” Graham chimed in. “Our police are on the cutting edge. I mean, everybody's envious about our police – they're on the front lines of technology and adopting tools to keep us safe.

“And I hope they keep pushing it.”

Even so, regarding the wording of Scottsdale’s 2026 state lobbying, Graham made a motion to delete “to promote the responsible and transparent use of emerging technologies.”

The motion carried 5-2, with McAllen – whose alternate motion of keeping the language in failed – and Whitehead opposing.

‘Flock fury’

That sneaking feeling of being watched is hardly just a Scottsdale – or Arizona – thing.

What can be called “Flock fury” is sweeping the country.

Some headlines, in just the last week:

- “Boston drops Flock after outside agencies gained access to vehicle data”
- “Flock cameras escalate the battle between privacy and safety in St. Louis”
- “San Jose police officer fired for allegedly sharing Flock camera data with domestic violence suspect”
- “Colquitt County (Georgia) deputy arrested for alleged misuse of Flock cams”
- “Flock backlash hangs over fate of police millages in Detroit area towns”
- “Trump weighs in on Flock debate: ‘I like them’”

Here in Scottsdale, LeDuc and company continue to stand behind their use of the surveillance system.

“We are aware of the discussions occurring in other communities, but Scottsdale evaluates this technology based on our own experience, policies, safeguards and public safety needs,” Sempsis said, via email.

“While some jurisdictions have chosen to discontinue Flock and/or possibly seek other vendors,” she allowed, “several of the state’s largest cities, including Phoenix and Mesa, continue to use the technology because of its value as a public safety and investigative tool.”

Sempsis insisted Flock’s ALPR system “is not, by its use alone, a violation of the Fourth Amendment. It captures license plates and vehicle characteristics that are visible on public roadways, and its use by law enforcement has been upheld in circumstances considered by the courts.

“At the same time,” she added, “we recognize the legitimate importance of privacy, oversight, and accountability, which is why Scottsdale has had safeguards governing its use from the beginning.”

Missing info?

Ten months ago, when asked by the Progress about criticism over the city’s use of Flock, Graham said, “transparency on these tools would strengthen community trust.”

On Aug. 26, the Progress filed a public records request for “copies of Scottsdale Police Department reports, summaries and data referencing the Flock system.”

Three weeks later, the city has not provided the information requested.

If, as Graham suggested, a Flock presentation to City Council is coming soon, LeDuc likely will point to Flock success stories.

On Feb. 17, 2024, Raad Almansoori – a suspect in a New York City murder case – allegedly stabbed a woman in Surprise. (He later told police he intended to rape and murder her, according to court documents.)

After an alert was sent out, SPD’s Flock system “pinged” the stolen car to a Scottsdale Fashion Square parking lot. Officers raced to the parking lot and arrested Almansoori.

He allegedly told detectives he planned to find a victim to rape and murder at the mall.

That was hardly the only time SPD used the Flock system at its Real Time Crime Center.

Sempsis said Flock's system "has proven to be an extraordinary public safety tool.

"It has helped us locate dangerous suspects, solve serious violent crimes, recover stolen vehicles and locate missing and endangered people."

In numerous cases, she insisted, the Flock system "has quite literally saved lives."

Most recently, on Sept. 12, "Flock helped officers quickly locate a missing 79-year-old woman with dementia who had been driving while disoriented," Sempsis said.

"Recent LPR detections gave officers valuable information about the area where her vehicle could be, allowing them to position officers in the area and locate her within approximately 20 minutes."

Some in the city to Scottsdale's south made the same arguments in defense of ALPR systems.

Four months ago, the Tempe City Council – though it was still using Flock – approved a 60-day trial of Axon's Outpost, an emerging Flock competitor that uses similar ALPR cameras.

In March, Tempe Mayor Corey Woods enthusiastically promoted ALPR benefits, citing several examples in which the Tempe Police Department utilized Flock cameras.

"These stories show that if the technology is used properly with the right kinds of safeguards, that it can actually lead to justice for victims," Woods said, "and bring people to justice in very dangerous crimes."

Then, after anti-ALPR candidates were elected, Tempe quickly changed its tune.

According to an Aug. 26 announcement:

“Tempe has turned off its Flock automated license plate reader system, will end its contract with the company and will not seek another provider.”

Tempe started using Flock cameras in 2023.

Compared to Scottsdale, Tempe has about a third less ALPR coverage; it had been paying Flock an average of $100,000 per year for 33 cameras.

While Scottsdale’s 85 Flock cameras continue to record every vehicle passing by, Chandler and Tempe “bagged” their Flock cameras – making sure they can’t record while waiting for the company to remove them.

The Scottsdale resident behind unflockscottsdale.com – who asked that his name not be used, for fear of reprisal – insists his city’s view is flawed:

“Scottsdale is an outlier and not in a good way. Eleven Arizona communities have already rejected Flock, understanding that a Flock contract is a gateway – one that normalizes AI surveillance and opens the door to even more invasive tools down the line.”

The fine print: Flock contract

What exactly is Scottsdale getting for the $370,000 per year it pays Flock Safety?

The Progress requested copies of contracts/agreements between the city of Scottsdale and Flock Safety for the time period 2021 to present.

According to records provided, then-City Attorney Sherry Scott as well as the city’s purchasing director and police operational support director signed a contract with Flock Group’s Mark Smith June 21, 2023 – more than three years ago.

The $1.2 million contract has a five-year “initial term” with a two-year “renewal term.”

Scottsdale also has a “Drone as First Responder” program, launching camera-armed drones from near City Hall for use with Scottsdale Police Department’s Real Time Crime Center – where technicians received Flock alerts.

The only way to cancel the Flock contract appears to be for Scottsdale City Council to “fail to appropriate sufficient funds … to pay for future goods/services from Flock” during the city’s “annual budget adoption.”

As City Council approved the 2026-27 budget in June, the city could be on the hook for Flock until at least June 30, 2027.

In the contract, the Flock Safety Falcon system is described as “an infrastructure-free license plate reader that utilizes Vehicle Fingerprint technology to capture vehicular attributes.”

Installation is included, though the contract does not stipulate the number of cameras.

The contract includes “access to privately owned Flock cameras within your jurisdiction” by “unlimited users” of the Flock operating system.

The SPD can “look up specific license plate location history captured on Flock devices,” according to the contract.

Scottsdale Police can also upload a “suspect photo vehicle” found in another source, and the Flock system will “match it to vehicles recorded by Flock Safety in the last 30 days.”

Uploading a suspect’s license plate can also generate alerts if the plate is read by Flock.

Though vowing “Flock does not own and shall not share customer data,” the company states if “may provide” SPD “with the opportunity to post, upload, display, publish, distribute, transmit, broadcast or otherwise make available, messages, text, illustrations, files, images, graphics, comments, sounds, music, videos, information, content, ratings, reviews, data, questions, suggestions, or other information or materials produced by” SPD’s Flock system.